

SENATE No. 2397

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia D. Jehlen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to fare free buses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/28/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>3/4/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/11/2025</i>

SENATE No. 2397

By Ms. Jehlen, a petition (accompanied by bill, Senate, No. 2397) of Patricia D. Jehlen, James B. Eldridge and Adam Gomez for legislation relative to fare free buses. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2246 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to fare free buses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) There shall be within the Massachusetts Bay Transportation Authority, a
2 pilot program for fare free buses. The program shall establish a minimum 1 year pilot, whereby,
3 access to bus service is free for any person who boards an MBTA bus, without pass, cash fare, or
4 CharlieTicket. The program may include all MBTA bus routes and shall at a minimum include
5 no less than 10 priority bus routes as established by the MBTA, and 10 routes that are not top 20
6 routes, but that experienced higher than average ridership between the months of March 2020-
7 December 2020. The program shall include no less than 3 routes that operate with terminuses at:
8 1. MBTA commuter rail suburban stations; 2. MBTA heavy rail or subway stations; 3. bus depot
9 destinations.

(b) There shall be a fare free MBTA bus advisory group consisting of 10 members to oversee the pilot program. The advisory group shall include: the general manager of the MBTA; the director of bus operations; the secretary of transportation or a designee from the department; 1 members of the fiscal management and control board chosen by the board at a public meeting; a labor designee; the executive director of LivableStreets or a designee; the executive director of ACE or designee; 1 member of the MBTA advisory council, chosen by the council; 1 person representing people with disabilities; 1 seat for an Environmental Justice municipality within the MBTA region.

(c) The fare free MBTA bus advisory group shall create, with the assistance of MassDOT and MBTA staff, goals, standards, and key metrics for the development and tracking of the fare free bus pilot. It shall hold public meetings at which public testimony will be accepted not less than quarterly and present all relevant data and implementation information. The advisory group shall form sub-groups as needed, including to evaluate the impacts on ridership, equity, increase in access to MBTA heavy rail, system efficiency, on-time performances of bus routes, any cost savings as compared to fare revenue impact, impact on fare evasion, impact on bus driver and rider incidents, or any other area identified by the advisory group. The advisory group shall identify ridership community representatives for each of the routes that are part of the pilot and those representatives shall be allowed to participate in each of the meetings or portions of meetings where those routes are discussed. The advisory group shall have full access to any data or record related to the pilot. The MBTA and MassDOT shall identify and assign a team of staff dedicated solely to the support of the advisory group and the performance of the pilot.

(d) The pilot shall commence not later than December 31, 2026. The advisory group shall present formal findings not less than every six months thereafter to the joint fiscal management

and control board and MassDOT Boards. A final report on the pilot shall be submitted to the joint fiscal management and control board and MassDOT boards not later than 3 months after the conclusion of the pilot.

SECTION 2. (a) All Regional Transit Authorities operating in Massachusetts shall operate a pilot program for fare free buses. The program shall establish a minimum 1 year pilot, where by, access to bus service is free for any person who boards an RTA bus, without pass or cash fare. The RTA program may include all bus routes within the specified Regional Transit Authority and shall include at least one route that experienced higher than average ridership between the months of March 2020-December 2020.

(b) There shall be a fare free RTA advisory group to oversee the pilot program. The advisory group shall include: 1 representative from each participating RTA; the secretary of transportation or a designee from the department; 1 member of RTAAC; 1 person representing people with disabilities; 1 member from an Environmental Justice community in a participating RTA region; 1 municipal designee within a participating RTA region.

(c) The fare free bus RTA advisory group shall create, with the assistance of MassDOT staff, establish goals, standards, and key metrics for the development and tracking of the fare free bus pilot. It shall hold public meetings at which public testimony will be accepted not less than quarterly and present all relevant data and implementation information. The advisory group shall form sub-groups as needed, including to evaluate the impacts on ridership, equity, increase in access to MBTA heavy rail, system efficiency, on-time performances of bus routes, any cost savings as compared to fare revenue impact, impact on fare evasion, impact on bus driver and rider incidents, any expansion routes or linkage routes that could be brought online, or any other

55 area identified by the advisory group. The advisory group shall identify ridership community
56 representatives for each of the routes that are part of the pilot and those representatives shall be
57 allowed to participate in each of the meetings or portions of meetings where those routes are
58 discussed. The advisory group shall have full access to any data or record related to the pilot.
59 MassDOT shall identify and assign a team of staff dedicated solely to the support of the advisory
60 group and the performance of the pilot.

61 (d) The pilot shall commence not later than December 31, 2026. The advisory group shall
62 present formal findings not less than every six months thereafter to the joint fiscal management
63 and control board and MassDOT Boards. A final report on the pilot shall be submitted to the
64 joint fiscal management and control board and MassDOT boards not later than 3 months after the
65 conclusion of the pilot.